

		In ruling on the motion, the Court may rely on the parties' declarations and other admissible evidence alone. Given the above, the Court denies Plaintiff's request for an evidentiary hearing. Attorneys' fees and costs Defendant requests \$3,653.70 in attorneys' fees and costs incurred to enforce the settlement. (Gold Decl. ¶ 12.) Section 7(b) of the Settlement Agreement provides if "any action, proceeding, motion, or other effort is commenced to enforce, interpret, or remedy a breach of any term or provision of this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party all reasonable attorneys' fees and costs incurred in connection therewith" (Gold Decl., Ex. 1.) Accordingly, the Court GRANTS Defendant Sonja Radovic's Motion to Enforce Settlement Agreement and Defendant's request for attorneys' fees and costs in the amount of \$3,653.70.
11	Doe vs. Orange County Unified School District 2024-01395575 Motion for Summary Judgment and/or Adjudication	Defendant Orange Unified School District's motion for summary adjudication of plaintiff John Doe's cause of action for negligence per se is DENIED. Defendant seeks summary adjudication of the following issue: Plaintiff's Negligence Per Se cause of action fails because Maria Vicencio had no mandatory duty to report under CANRA, as her observations arose outside the scope of her employment and in her private capacity. Procedural Defects: First, Plaintiff argues the Motion is untimely. Code of Civil Procedure section 437c, subdivision (a)(3) states in pertinent part: "The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c, subd. (a)(3); see also Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1268 ["Defendants noticed their motion for hearing within 30 days of the trial date without first obtaining a determination of good cause from the trial court," and "[u]nless and until the trial court found good cause, the notice of the hearing was invalid."].) Although trial was initially set for September 28, 2028, on 9-16-26, the Court continued the trial to 1-4-27. (ROA 187.) Therefore, the Motion is timely. Second, Plaintiff contends the issue as framed seeks to dispose of a part of a single cause of action and summary

	adjudication can only be granted as to the entire cause of action. Section 437c, subdivision (f)(1) states in pertinent part: "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." Plaintiff argues the third cause of action alleges "Negligence and Negligence Per Se" and Defendant only seeks adjudication of negligence per se allegations and not the entire negligence cause of action. "Negligence per se is an evidentiary doctrine, rather than an independent cause of action." (<i>Jones v. Awad</i> (2019) 39 Cal.App.5th 1200, 1210–11.) "The doctrine does not provide a private right of action for violation of a statute. [Citation.] Instead, it operates to establish a presumption of negligence for which the statute serves the subsidiary function of providing evidence of an element of a preexisting common law cause of action." (<i>Quiroz v. Seventh Ave. Ctr.</i> (2006) 140 Cal.App.4th 1256, 1285–1286.) Negligence per se "can be applied generally to establish a breach of due care under any negligence-related cause of action. (<i>Norman v. Life Care Centers of America, Inc.</i> (2003) 107 Cal.App.4th 1233, 1248.) Here, Plaintiff's claim for negligence is based upon theories of common-law negligence, or in the alternative, negligence per se. Thus, even if the Court were to dismiss the claim to the extent it relies upon negligence per se, the negligence claim would survive, since Defendant has not argued that Plaintiff cannot state a claim for negligence. Further, under Quiroz there isn't an independent negligence per se cause of action that the court can summarily adjudicate. Defendant contends that because the negligence per se doctrine turns on a statutory duty, what Defendant presents is an "issue of duty." Although section 437c, subdivision (f)(1) allows a party to move for summary adjudication as to "one or more issues of duty," the Issue as framed by Defendant seeks adjudication of "Negligence Per Se cause of action" not merely to adjudicate the issue of a mandatory duty to report. Specifically, Defendant's Notice of Motion moves "for an order granting summary adjudication, of Plaintiff's cause of action for negligence per se as set forth in the operative complaint." (Notice, 1:27-28.)
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		Therefore, the Court cannot grant summary adjudication of the issue as framed by Defendant and declines to reach the merits. Moving party to give notice.
12	Goldman vs. Pancho's Restaurant 2024-01408882 Motion for Summary Judgment and or Adjudication	Plaintiff Cheyenne Goldman's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED. Plaintiff has asked the court to enter partial summary judgment-summary adjudication-on the issue of whether Defendants violated various California Labor Codes and IWC Wage Orders, leaving damages to be tried. Specifically, in her notice of motion, Plaintiff requests an order granting partial summary judgment or, in the alternative, summary adjudication of the ninth, tenth, eleventh, and twelfth causes of action. In the "Conclusion" section of the motion and the reply, Plaintiff explains that "[i]n so doing, the Court would limit the remaining issues for trial on those causes of action to the calculation of damages." (Motion at p. 15:19-20; Reply at p. 10:22-23 [emphasis added].) In her reply Plaintiff also states, "Whether the number of noncompliant shifts is 164 [Citation] or some other figure is a question of damages for trial, which is how Plaintiff framed the motion. [Citation.]" (Reply at p. 3:23-25 [emphasis added].) As an initial matter, "there is no such creature as 'partial summary judgment' in California; the proper term is 'summary adjudication.' [Citation]." (<i>Paramount Petroleum Corp. v. Superior Court</i> (2014) 227 Cal.App.4th 226, 243.) More importantly, Plaintiff's requested relief is improper. "[T]here [is] no statutory basis for such an order. As we have explained, the governing statute provides that a plaintiff can only obtain summary adjudication of a cause of action if the plaintiff establishes each element of the cause of action entitling it to judgment on that cause of action. The court specifically held that '[a] decision on the issue of liability against the party on whom liability is sought to be imposed does not result in a judgment until the issue of damages is resolved.' [Citation.] Therefore, such a summary adjudication would be improper. We fully agree with the court's reasoning." (<i>Paramount Petroleum Corp., supra</i>, 227 Cal.App.4th at p. 243 [breach of contract case], quoting <i>Department of Industrial Relations v. UI Video Stores, Inc.</i>(1997) 55 Cal.App.4th 1084, 1097; Code Civ. Proc., § 437c, subd. (f)(1) ["A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."].)